

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William MacLure	Team: Squad #6	CCRB Case #: 201903704	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/30/2019 1:30 PM	Location of Incident: East 49th Street and Avenue J	Precinct: 63	18 Mo. SOL 10/30/2020	EO SOL 6/16/2021	
Date/Time CV Reported Wed, 05/01/2019 12:23 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/01/2019 12:23 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Timi Tomacruz	02303	947545	063 PCT
2. POM Giorgio Mannarino	21676	963132	063 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Timi Tomacruz	Abuse: Police Officer Timi Tomacruz stopped the vehicle in which § 87(2)(b) was an occupant.	
B.POM Giorgio Mannarino	Abuse: Police Officer Giorgio Mannarino stopped the vehicle in which § 87(2)(b) was an occupant.	
C.POM Timi Tomacruz	Abuse: Police Officer Timi Tomacruz refused to provide his shield number to § 87(2)(b)	

Case Summary

On May 1, 2019, § 87(2)(b) filed this complaint with the CCRB over the phone.

On April 30, 2019, at approximately 1:30 p.m., in the vicinity of East 49th Street and Avenue J, in Brooklyn, PO Timi Tomacruz and PO Giorgio Mannarino, of the 63rd Precinct, pulled § 87(2)(b) over for driving in a bus lane (**Allegations A and B: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) asked PO Tomacruz for his shield number. PO Tomacruz said his shield number very quickly, so § 87(2)(b) asked him to repeat it. PO Tomacruz refused to repeat his shield number for § 87(2)(b) (**Allegation C: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) was not issued a summons or arrested.

Body Worn Camera (BWC) footage taken by PO Tomacruz and PO Mannarino was received from NYPD Legal (Board Reviews 01 through 05).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Timi Tomacruz stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Police Officer Giorgio Mannarino stopped the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b) drove in the bus lane.

§ 87(2)(b) (Board Review 06) drove south onto the bus lane approximately half way between Avenue H and Avenue I. He turned onto Avenue I, and then turned left onto East 49th Street. In the vicinity of East 49th Street and Avenue J, PO Tomacruz and PO Mannarino stopped § 87(2)(b) and informed him that he could not drive in the bus lane.

PO Mannarino (Board Review 07) stated that he and PO Tomacruz observed § 87(2)(b) drive in the bus lane for an entire block on Utica Avenue prior to making a right turn.

In PO Tomacruz's BWC (Board Review 01 and 02), he can be heard explaining to § 87(2)(b) that it is illegal to drive in the bus lane.

According to Google Maps, the block of Utica Avenue between Avenue H and Avenue I is approximately 0.2 miles long, or approximately 1056 feet (Board Review 08). Images from Google Maps StreetView capture signs stating that only buses and right turns are allowed in the bus lane between 7:00 a.m. to 7:00 p.m. on Mondays through Fridays (Board Review 09).

When signs are erective giving notice of bus lane restrictions, no person shall drive a vehicle other than a bus within a designated bus lane during the restricted hours except to use the bus lane in a safe manner to make a right turn, within two hundred feet of entry into such bus lane, into a public or private street or driveway, New York City Traffic Rules, Section 4-12m, "Bus Lane Restrictions on City Streets" (Board Review 10).

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Timi Tomacruz refused to provide his shield number to § 87(2)(b)

In PO Tomacruz's BWC, he returns to § 87(2)(b) vehicle to give § 87(2)(b) his license without issuing a summons. § 87(2)(b) asks PO Tomacruz for his information twice and PO Tomacruz states his name three times and shield number twice. PO Tomacruz begins to walk back to his police vehicle. § 87(2)(b) exits his vehicle and asks PO Tomacruz for his

information again. PO Tomacruz states his name and shield number three times. PO Tomacruz gets into the police vehicle.

§ 87(2)(b) stated that PO Tomacruz only provided his name once and did not provide his shield number upon request. § 87(2)(b) stated that he ultimately obtained PO Tomacruz's name and shield number from his name tag and shield on his uniform.

Body worn camera footage captured PO Tomacruz verbally providing his shield number to § 87(2)(b) five times, § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one prior CCRB complaint and was named a victim in one prior allegation (Board Review 11).
 - § 87(2)(b)
- PO Tomacruz has been a member of the service for 11 years and has been a subject in six CCRB complaints and nine allegations, none of which were closed as substantiated. § 87(2)(g)
- PO Mannarino has been a member of the service for two years and has been a subject in three CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date